# COGS OF AUSTRALIA FOUNDATION

COG$ — Community Owned Gold and Silver / Community Operated Governance Structure

## DIVIDEND DISTRIBUTION UNIT TRUST DEED

### COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Sub-Trust B

In-Ground Mineral Value Doctrine · Indigenous Heritage Framework · Members Dividend Structure · Approved Ledger and RWA Infrastructure

| | |
|---|---|
| **CARETAKER TRUSTEE** | Thomas Boyd Cunliffe of 780 Sugarbag Road West, DRAKE 2469 NSW, in his capacity as the Caretaker Trustee of Sub-Trust B and of the CJVM Hybrid Trust unless and until he retires, is removed, or a later trustee structure is validly constituted under the Declaration. |
| **DECLARANT** | Thomas Boyd Cunliffe of 780 Sugarbag Road West, DRAKE 2469 NSW. As Declarant and Caretaker Trustee, he declares that Sub-Trust B is constituted as a ring-fenced fixed distribution trust within the CJVM Hybrid Trust, funded by the Beneficiary Distribution Stream from Sub-Trust A and holding Sub-Trust A Unit 1. |
| **GOVERNING LAW** | South Australia, Australia. |
| **PRINCIPAL LEGISLATION** | Corporations Act 2001 (Cth); Trustee Act 1936 (SA); Law of Property Act 1936 (SA); Charities Act 2013 (Cth); AML/CTF Act 2006 (Cth); Privacy Act 1988 (Cth); Income Tax Assessment Act 1997 (Cth); Electronic Transactions Act 1999 (Cth); Electronic Transactions Act 2000 (NSW). |
| FOUNDING AND PREVAILING INSTRUMENT | This Deed is a sub-trust instrument made under and subordinate to the Declaration. The Declaration is subordinate to the Joint Venture Participation Agreement, which is the supreme governing instrument of the Joint Venture. In the event of any inconsistency between this Deed and the Declaration, the Declaration prevails. In the event of any inconsistency between this Deed or the Declaration and the Joint Venture Participation Agreement, that Agreement prevails. No provision of this Deed limits or modifies any entrenched provision of the Declaration. |
| **PERPETUAL DURATION** | This Deed is perpetual. Sub-Trust B continues for as long as the CJVM Hybrid Trust exists. This Deed has no vesting date. Amendment is governed by Part 6 consistently with the Declaration. |

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## RECITALS

*This Deed is made against the following background:*

(A) The COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust (Hybrid Trust) is constituted by the COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust Declaration (the Declaration), executed by Thomas Boyd Cunliffe as Declarant and Caretaker Trustee and governed by the law of South Australia.

(A1) The CJVM Hybrid Trust is constituted by declaration. On execution of the Declaration, Thomas Boyd Cunliffe as legal and beneficial owner of the Initial Trust Property declared that he henceforth holds that property on the trusts of the Declaration. The Initial Trust Property is the specifically identified parcel of 1,545 ASX:LGM shares recorded in account CRVGS, held in trust for the CJVM Hybrid Trust. That settlement constitutes the CJVM Hybrid Trust as a whole and not Sub-Trust B separately.

(B) The Declaration establishes Sub-Trust B as a fixed distribution trust. Sub-Trust B receives the Beneficiary Distribution Stream from Sub-Trust A and must distribute 100% of that amount proportionally to all Beneficial Unit holders within sixty (60) days of receipt, in accordance with the Declaration, including Schedule 9, Part A and all other operative distribution provisions in the Declaration and this Deed.

(C) Sub-Trust A issues exactly two units: Unit 1, held by Sub-Trust B, conferring entitlement to the Beneficiary Distribution Stream; and Unit 2, held by Sub-Trust C, conferring Sub-Trust C's separate allocation. Eligible Beneficial Unit holders include holders of Class S (Personal S-NFT COG$), Class kS (Kids S-NFT COG$), Class B (BNFT), Class A (ASX COG$), Class Lh (Landholder COG$), Class BP (Business Property COG$), and Class R (RWA COG$) Units, each carrying one Beneficial Unit, and Sub-Trust C as D Class Beneficial Unit Holder in respect of each validly issued Class D (Donation COG$) Unit and any other unit class created by the Members through Members Poll and issued by the Trustee in accordance with this Deed and the Declaration.

(D) Sub-Trust B is the proportional distribution vehicle for the Beneficiary Distribution Stream. It does not hold the Members Asset Pool and has no entitlement to any part of the purchase price of Donation COG$ or Pay It Forward COG$ issuances. Sub-Trust C receives its proportional share of the Beneficiary Distribution Stream through Sub-Trust B solely in its capacity as D Class Beneficial Unit Holder, and separately receives a $2.00 direct payment on issue of each Donation COG$ / Class D Unit.

(E) Sub-Trust A Unit 1 is held by Sub-Trust B and confers entitlement to the Beneficiary Distribution Stream. Individual Members do not hold units in Sub-Trust A directly; they hold Beneficial Units within Sub-Trust B. Sub-Trust C holds one Beneficial Unit as D Class Beneficial Unit Holder for each validly issued Class D Unit.

(F) This Deed supplements and gives effect to the Declaration. It is intended to align with the current trustee architecture, terminology, register hierarchy, and Schedule 9 matrix architecture of the Declaration, while preserving Sub-Trust B as a narrow downstream distribution trust. In this Deed, references to Schedule 9 or Schedule 9, Part A are references to Schedule 9, Part A of the Declaration, incorporated into this Deed by reference as the controlling Issue-and-Record Matrix.

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# PART 1 — PRELIMINARY

## 1. Name and Operative Status

1.1 This instrument is the COGS of Australia Foundation Dividend Distribution Trust Deed (this Deed) establishing Sub-Trust B of the COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust (the CJVM Hybrid Trust).

1.2 From execution of this Deed, Thomas Boyd Cunliffe is the Caretaker Trustee of Sub-Trust B in his capacity as the Caretaker Trustee and continuing trustee of the CJVM Hybrid Trust under the Declaration. The trustee structure of Sub-Trust B is at all times the trustee structure of the CJVM Hybrid Trust under the Declaration. Changes to the trustee — whether by appointment of additional trustees, retirement, replacement, or appointment of a corporate trustee — are governed exclusively by the Declaration and by the Trustee Act 1936 (SA). No separate deed of appointment or retirement is required to preserve continuity of the trusts of this Deed; however, the outgoing trustee and the incoming trustee must execute any deed, notice, transfer, vesting instrument, registry form, bank mandate, or other document reasonably necessary to evidence, perfect, register, or operationalise the change in trustee.

1.3 This Deed is a supplementary sub-trust instrument made under and subordinate to the Declaration. The Declaration is the principal operative and governing instrument for the CJVM Hybrid Trust and all Beneficiary Holder rights and obligations. This Deed governs the specific provisions of Sub-Trust B as a ring-fenced fixed distribution trust within the CJVM Hybrid Trust. Declaration Schedule 9, Part A (the Issue-and-Record Matrix) forms part of the Declaration and is incorporated into this Deed by reference for all matters concerning lawful Unit issuance, Beneficial Unit recognition linked to lawful issue, and corresponding COG$ Token recording. In the event of any inconsistency, the Declaration prevails. From the date of execution, the Members exercise operational control through the Foundation's online cryptographic database system, which constitutes the first implementation of the Members' proprietary cryptographic governance system. The deployment of blockchain technology is a technology evolution, not the commencement of Member control.

1.4 This Deed is perpetual and may only be amended in accordance with Part 6 and consistently with the Declaration.

1.5 This Deed is executed as a deed by Thomas Boyd Cunliffe as Declarant and Caretaker Trustee of Sub-Trust B. It takes effect from execution and is binding on the Trustee. This Deed is executed by electronic means in accordance with the Electronic Transactions Act 1999 (Cth) and, where applicable, section 14G of the Electronic Transactions Act 2000 (NSW). No wet ink signature or paper counterpart is required or produced. If witnessing is required by applicable law, the witness may attest electronically, including by separate audio-visual connection, and that attestation forms part of the Deed Execution Record. Where this Deed is executed on the same calendar date as the Declaration by a separate audio-visual connection held shortly following execution of the Declaration, it remains a separate instrument with its own Deed Execution Record and is deemed for instrument-suite dating and effect to take effect on that same date. For trustee-transition continuity, see clause 2.

1.5A This Deed is executed electronically. The electronically authenticated instrument is the original Deed. No physical original, paper counterpart, or physical certified copy is required or produced. The Deed Execution Record, including any electronic witness attestation required by applicable law, is stored in the Foundation's secure systems. The Deed Execution Record for this Deed is separate from the Declaration Execution Record. A SHA-256 hash of the Deed Execution Record may be committed to the Foundation's governance record or public ledger as the canonical integrity reference for this Deed. An electronically authenticated PDF of this Deed produced from the Foundation's secure systems is a legal copy of this instrument for all purposes, including production to a court, a regulator, the FNAC, Trustees, or any other party. "Certified copy" in this Deed means an electronically authenticated PDF produced under this clause, or a printed copy of such a PDF certified as a true copy by a legal practitioner holding an unrestricted practising certificate in any Australian jurisdiction, a notary public, or a Justice of the Peace. The Foundation must preserve the Deed Execution Record and the electronically executed instrument

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for the operational life of this Deed and for not less than seven (7) years after the lawful dissolution of the CJVM Hybrid Trust, whichever is longer. The FNAC may access the Deed Execution Record and the electronically executed instrument through the Foundation's secure systems on written request. If the integrity of the Deed Execution Record is disputed, resolution is by SHA-256 hash verification against the recorded integrity reference. If hash verification is technically impossible or inconclusive, the Trustee must apply to the Supreme Court of South Australia for directions.

1.6 The Foundation trades as COG$ (Community Owned Gold and Silver / Community Operated Governance Structure) and may use that abbreviated name in any public-facing materials.

## 1A. Caretaker Trustee Period — Restrictions and Permitted Actions

1A.1 Until the trustee structure of the CJVM Hybrid Trust is expanded under clause 1.8 of the Declaration, Thomas Boyd Cunliffe of 780 Sugarbag Road West, DRAKE 2469 NSW (the Caretaker Trustee) holds office as the Caretaker Trustee and continuing trustee of Sub-Trust B in his personal capacity as Caretaker Trustee and continuing trustee of the CJVM Hybrid Trust. This arrangement is valid under the Trustee Act 1936 (SA) and general equity principles.

1A.2 During the initial period, all references in this Deed to the Trustee and the Board are to be read as references to the Caretaker Trustee to the extent required to give effect to this Deed, except where the context otherwise requires.

1A.3 During the Caretaker Trustee period, the following restrictions and permitted actions apply consistently with the Declaration: (a) the Caretaker Trustee may execute this Deed, maintain or redesignate a trust bank account for Sub-Trust B, hold and administer Sub-Trust A Unit 1 on behalf of Sub-Trust B when lawfully constituted, receive and hold transfers forming part of the Beneficiary Distribution Stream when lawfully payable under the Declaration, maintain the Beneficial Unit register and associated records, and take all preparatory and constitutive steps necessary to convene the Inaugural Meeting and satisfy the governance-constitution requirements of the Declaration; (b) no public distribution may be made from Sub-Trust B unless the trustee structure has been constituted under the Declaration and the governing conditions for lawful operation and distribution under the Declaration and applicable law have been satisfied; (c) no provision of this Deed independently authorises any Unit issuance, Beneficial Unit recognition, corresponding Token record, or distribution election contrary to the Declaration, including Schedule 9, Part A; and (d) the Caretaker Trustee has a right of indemnity from trust property for all liabilities properly incurred in carrying out this clause. This right of indemnity survives any later appointment of trustees, any retirement, and any valid reconstitution of the trustee structure.

1A.4 The Caretaker Trustee has personal liability for trust obligations during the initial period, subject to the right of indemnity in clause 1A.3(d). This is an inherent characteristic of individual trusteeship under Australian law.

1A.5 The governance structure of the CJVM Hybrid Trust must be actively progressed in accordance with Declaration clauses 1.7.5 and 1.8.1. The Caretaker Trustee must use reasonable endeavours within twelve (12) months of execution to constitute the governance body required by the Declaration, and must convene the Inaugural Meeting within two (2) years of execution. The twelve (12) month period is an endeavours obligation only and does not displace the operative two (2) year deadline. The Caretaker Trustee confirmation vote mechanics at the Inaugural Meeting are governed by Declaration clause 1.8.1.

## 2. Trustee Continuity and Supporting Instruments

2.1 On each occasion that the trustee structure of the CJVM Hybrid Trust changes in accordance with the Declaration, the incoming trustee automatically assumes the rights, powers, duties, and obligations of the trustee under this Deed upon appointment.

2.2 The outgoing trustee and the incoming trustee must do all things and execute all documents reasonably necessary to evidence, perfect, register, vest, or otherwise give practical effect to that transition in relation to

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Sub-Trust B trust property, bank accounts, Beneficial Unit registers, distribution records, and associated administrative arrangements.

2.3 A certified copy of each deed or instrument giving effect to a change in trustee must be retained with this Deed as an annexure, entered in the trust records, and provided to the FNAC upon request.

2.4 Where the incoming trustee structure includes a CLG or other body corporate, that entity acts as Trustee of Sub-Trust B in accordance with the Declaration and applicable law.

## 3. Definitions

Beneficiary Holders in this Deed are the Members of the Joint Venture as defined in the Joint Venture Participation Agreement. The two terms refer to the same persons exercising different capacities — Members in the Joint Venture, and Beneficiary Holders in this trust law instrument.

Trustee Functions has the meaning given in the Declaration and the Joint Venture Participation Agreement. Expansion Day has the meaning given in the Declaration — the date on which the Members activate the [Gundoo Ngiri] Proprietary Node on the Members Consensus Network.

| Term | Definition |
|---|---|
| ASX COG$ (Class A) | Has the meaning given in the Declaration. This class carries one (1) Beneficial Unit per validly issued Unit; see clause 6.2. |
| Beneficial Unit | A Sub-Trust B income unit arising from the valid lawful issue or allocation under the Declaration of an eligible Unit class or, in the case of Class D, held by Sub-Trust C as D Class Beneficial Unit Holder. Classes S, kS, B, A, Lh, BP, and R each carry one (1) Beneficial Unit per validly issued Unit. Class D does not confer a personal Beneficial Unit on the donor. Classes C (Community COG$), P (Pay It Forward COG$), and Lr (Resident COG$) carry no Beneficial Unit. |
| Beneficial Unit Holder | Any person, entity, or sub-trust holding one or more Beneficial Units in Sub-Trust B at the relevant time, including Sub-Trust C as D Class Beneficial Unit Holder. |
| Beneficiary Distribution Stream | Fifty per cent (50%) of the dividends and other income transferred from Sub-Trust A to Sub-Trust B for proportional distribution to all Beneficial Unit holders, including Sub-Trust C as D Class Beneficial Unit Holder, in accordance with the Declaration (including, for the avoidance of doubt, Schedule 9, Part A). |
| BNFT / Class B | Has the meaning given in the Declaration. This class carries one (1) Beneficial Unit per validly issued Unit; see clause 6.2. |
| Business Property COG$ (Class BP) | Has the meaning given in the Declaration. This class carries one (1) Beneficial Unit per validly issued Unit; see clause 6.2. |
| Community COG$ (Class C) | Has the meaning given in the Declaration. This class confers no Beneficial Unit in Sub-Trust B. |

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| D Class Beneficial Unit Holder | Sub-Trust C in its capacity as the holder of one Beneficial Unit in Sub-Trust B for each Donation COG$ / Class D Unit validly issued under the Declaration. Sub-Trust C receives its proportional share of the Beneficiary Distribution Stream through Sub-Trust B in this capacity, in addition to any direct payment separately received on each Donation COG$ issue. |
| Declaration | The COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust Declaration, being the principal operative and governing instrument of the CJVM Hybrid Trust, including Schedule 9 as in force from time to time. Schedule 9, Part A of the Declaration is the controlling Issue-and-Record Matrix and is incorporated into this Deed by reference. This Deed is in all respects subordinate to the Declaration. |
| Deed | This COGS of Australia Foundation Dividend Distribution Trust Deed establishing Sub-Trust B, as amended from time to time consistently with the Declaration. |
| Distribution Election | The election by a Beneficial Unit holder under clause 12 to receive a Sub-Trust B distribution as AUD or, where lawful under the Declaration including Schedule 9, Part A, as new ASX COG$ / Class A Units and, after completion of the required administrative verification and approval process through the Members Vault, the corresponding COG$ Token minted or recorded at the earliest practicable time thereafter. |
| Donation COG$ (Class D) | Has the meaning given in the Declaration. It confers no personal Beneficial Unit on the donor. For each validly issued Class D Unit, Sub-Trust C is the D Class Beneficial Unit Holder in Sub-Trust B. |
| Kids S-NFT COG$ (Class kS) | Has the meaning given in the Declaration. When validly issued under the Declaration, it confers one (1) Beneficial Unit in Sub-Trust B held on trust for the child until conversion under the Declaration. |
| Landholder COG$ (Class Lh) | Has the meaning given in the Declaration. This class carries one (1) Beneficial Unit per validly issued Unit; see clause 6.2. |
| Personal S-NFT COG$ (Class S) | Has the meaning given in the Declaration. This class carries one (1) Beneficial Unit per validly issued Unit; see clause 6.2. |
| RWA COG$ (Class R) | Has the meaning given in the Declaration. This class carries one (1) Beneficial Unit per validly issued Unit; see clause 6.2. |
| Sub-Trust A Unit 1 | One of exactly two units issued by Sub-Trust A, held by Sub-Trust B, conferring entitlement to the Beneficiary Distribution Stream. Sub-Trust A Unit 2 is |

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| | |
|---|---|
| | separately held by Sub-Trust C and is distinct from Sub-Trust B's entitlement. |
| Trust Fund | All property held by the Trustee from time to time in its capacity as trustee of Sub-Trust B, including Sub-Trust A Unit 1, all amounts transferred from Sub-Trust A to Sub-Trust B, all income accretions on those amounts, and all associated books and records. |
| Trustee | The person or persons for the time being holding office as trustee of the CJVM Hybrid Trust under the Declaration, who thereby hold office as trustee of Sub-Trust B. From execution, the Trustee is Thomas Boyd Cunliffe as the Caretaker Trustee. Thereafter the Trustee is whoever holds that office under the Declaration at the relevant time. |
| Unit Value | The value per Beneficial Unit calculated in accordance with the Declaration. |

## 4. Interpretation

4.1 This Deed must be read consistently with the Declaration. Unless otherwise stated, a clause reference in this Deed to a Declaration clause is identified as such.

4.2 All rights and obligations under this Deed arise and operate in the trustee capacity only. No provision creates any right in or obligation of any entity in its personal or corporate capacity.

4.3 Words in the singular include the plural and vice versa. A reference to a person includes a corporation, trust, partnership, joint venture, association, or other legal entity. A reference to legislation includes any amendment, re-enactment, or subordinate instrument made under it.

4.4 This Deed is governed by the laws of South Australia, Australia. The courts of South Australia have non-exclusive jurisdiction to determine disputes arising from or relating to this Deed.

4.5 The Trustee acts under this Deed solely in its trustee capacity. No obligation or right arising under this Deed is an obligation or right of the Trustee in its personal or corporate capacity. Trust property held under this Deed is not available to meet any liability of the Trustee in its personal or corporate capacity.

4.6 In the event of any inconsistency between this Deed and any CLG constitution or other constituent document adopted for a corporate trustee, the Declaration prevails in all matters relating to the CJVM Hybrid Trust and Beneficial Unit rights, subject to the Corporations Act to the extent of any inconsistency.

4.7 In the event of any inconsistency between this Deed and the Corporations Act or the Trustee Act, those statutes prevail to the extent of the inconsistency.

4.8 The Trustee's powers under this Deed are limited to Trustee Functions as defined in the Declaration and the Joint Venture Participation Agreement. The Members exercise operational authority through their proprietary cryptographic systems under the Joint Venture Participation Agreement. No schedule, policy, protocol, software logic, smart-contract implementation, board resolution, side arrangement, or administrative practice may amend, dilute, delay, circumvent, or achieve indirectly what this Deed, the Declaration, or any entrenched provision prohibits directly, except by a valid amendment made in accordance with the Declaration and this Deed.

4.9 Any purported recognition of a Beneficial Unit, register entry, distribution allocation, transfer, redemption, exchange, cancellation, or other disposition made in breach of the Declaration, an entrenched provision, or the governing distribution rules is ineffective to the extent permitted by law, confers no beneficial entitlement, and must be corrected in the register and distribution records as soon as practicable.

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## PART 2 — ESTABLISHMENT AND NATURE OF SUB-TRUST B

### 5. Establishment and Declaration of Trust

5.1 The Caretaker Trustee declares that it holds the Trust Fund on the trusts and subject to the powers and conditions of this Deed and the Declaration.

5.2 The trust established by this Deed is known as the COGS Dividend Distribution Trust, being Sub-Trust B of the COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust.

5.3 Sub-Trust B is a perpetual fixed distribution trust. It exists to receive the Beneficiary Distribution Stream from Sub-Trust A and distribute 100% of those receipts proportionally to all Beneficial Unit holders, including Sub-Trust C as D Class Beneficial Unit Holder, within sixty (60) days of receipt.

**5.4 Sub-Trust B is ring-fenced from Sub-Trust A and Sub-Trust C. Assets and income of one sub-trust must not be commingled with or transferred to another except as expressly provided by the Declaration. This is an entrenched provision (Declaration clause 35(c)).**

5.5 Sub-Trust B does not hold the Members Asset Pool and has no entitlement to any part of the purchase price of Donation COG$ or Pay It Forward COG$ issuances. Sub-Trust C receives its proportional share of the Beneficiary Distribution Stream through Sub-Trust B solely in its capacity as D Class Beneficial Unit Holder.

### 6. Fixed Unit Trust and Beneficial Unit Structure

6.1 Sub-Trust B is a fixed unit trust. The economic interests of Beneficial Unit holders are measured by Beneficial Units held in Sub-Trust B, not by any direct legal ownership of assets in Sub-Trust A.

6.2 The following COG$ classes each carry one (1) Beneficial Unit in Sub-Trust B upon valid lawful issue or allocation of the corresponding eligible Unit under the Declaration:

| Class | Class Name | Beneficial Unit |
|---|---|---|
| S | Personal S-NFT COG$ | One (1) — subject to the Declaration |
| kS | Kids S-NFT COG$ | One (1) — held on trust for child until conversion under the Declaration |
| B | Business B-NFT COG$ (BNFT) | One (1) — entity-bound under the Declaration |
| A | ASX COG$ | One (1) |
| Lh | Landholder COG$ | One (1) |
| BP | Business Property COG$ | One (1) |
| C | Community COG$ | None (immutable record of barter only) |
| R | RWA COG$ | One (1) |

6.3 Class D (Donation COG$) Units confer no personal Beneficial Unit on the donor. Sub-Trust C is the D Class Beneficial Unit Holder for each validly issued Class D Unit and thereby holds one Beneficial Unit per such Unit. Class C (Community COG$), Class P (Pay It Forward COG$), and Class Lr (Resident COG$) confer no Beneficial Unit and no entitlement to Sub-Trust B distributions.

6.4 Beneficial Units arise automatically upon valid lawful issue or allocation of the relevant eligible Unit under the Declaration and cease when the relevant eligible Unit and its associated entitlement cease under the Declaration.

6.5 The Unit Value of each Beneficial Unit is calculated in accordance with the Declaration. Unit Value is distinct from unit consideration. The Unit consideration and the Class Unit Value are distinct. A Member's economic

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interest in the CJVM Hybrid Trust is measured by the number of Sub-Trust B income units they hold, not by the market value of any corresponding Token record.

6.6 Sub-Trust B itself holds one unit in Sub-Trust A. Individual Members do not hold units in Sub-Trust A directly.

6.7 Sub-Trust C is registered on the Beneficial Unit register as D Class Beneficial Unit Holder. The number of Beneficial Units held by Sub-Trust C equals the total number of validly issued and outstanding Class D Units at the relevant record date.

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## PART 3 — TRUST FUND, FUNDING, AND BANKING

### 7. Source of Trust Fund

7.1 The Trust Fund of Sub-Trust B is constituted by:

– Sub-Trust A Unit 1, being the inter-sub-trust entitlement to the Beneficiary Distribution Stream;

– all transfers received from Sub-Trust A pursuant to the Declaration;

– all income, accretions, bank balances, and records held by the Trustee for the purposes of Sub-Trust B; and

– any other property lawfully transferred to or acquired by the Trustee for the purposes of Sub-Trust B.

7.2 No separate consideration is paid into Sub-Trust B on lawful issue or allocation of Units. Sub-Trust B is funded only through the Beneficiary Distribution Stream and related trust property.

7.3 The Trustee must maintain a separate bank account for Sub-Trust B. All monies transferred to Sub-Trust B must be credited to that account within one (1) business day of receipt.

7.4 The Trustee must keep separate books and records for Sub-Trust B and must preserve ring-fencing between Sub-Trust B and the other sub-trusts at all times.

### 8. Sub-Trust A Unit 1

8.1 Sub-Trust A Unit 1 is held by Sub-Trust B and confers entitlement to the Beneficiary Distribution Stream. Sub-Trust A Unit 2 is separately held by Sub-Trust C and is distinct from Sub-Trust B's entitlement.

8.2 The transfer of the Beneficiary Distribution Stream from Sub-Trust A to Sub-Trust B is mandatory and must occur within five (5) business days of Sub-Trust A receiving the relevant dividend or other income, in accordance with the Declaration, including Schedule 9, Part A and the operative dividend structure provisions then in force.

**8.3 The Trustee has no discretion to waive, reduce, delay, or re-characterise the transfer of the Beneficiary Distribution Stream to Sub-Trust B.**

8.4 Sub-Trust A Unit 1 is an inter-sub-trust mechanism and is not tradable, subdividable, or separately held by individual Members or Sub-Trust C.

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## PART 4 — DISTRIBUTION MECHANICS

### 9. Mandatory Distribution Obligation

9.1 Sub-Trust B must distribute 100% of its distributable balance proportionally to all Beneficial Unit holders — including Sub-Trust C as D Class Beneficial Unit Holder — within sixty (60) days of receipt from Sub-Trust A. This obligation is mandatory and entrenched under the Declaration, including its operative dividend structure provisions and clause 35(g).

**9.2 The Trustee has no discretion to vary, defer, retain, reallocate, or withhold the distributable balance except to the extent required by law for tax withholding, court order, or correction of manifest error.**

9.3 Failure to distribute within sixty (60) days constitutes a breach of trust enforceable by any Beneficial Unit holder in the Supreme Court of South Australia under the Declaration and general trust law.

9.4 Sub-Trust C participates in Sub-Trust B distributions solely as D Class Beneficial Unit Holder. It does not receive any separate or preferential stream through Sub-Trust B beyond its proportional entitlement as a Beneficial Unit holder.

### 10. Distribution Calculation

10.1 Each distribution cycle, the Trustee must calculate each Beneficial Unit holder's entitlement by dividing the distributable balance by the total number of Beneficial Units on issue as at the relevant record date (including Beneficial Units held by Sub-Trust C as D Class Beneficial Unit Holder) and multiplying that amount by the number of Beneficial Units held by that holder.

10.2 The record date, payment date, and election deadline for each distribution cycle must be published in advance in a manner accessible to Beneficial Unit holders.

10.3 The Trustee must apply the same per-unit distribution amount to every Beneficial Unit on issue, whether arising from a Class S, kS, B, A, Lh, BP, or R Unit, or held by Sub-Trust C as D Class Beneficial Unit Holder.

10.4 For Class kS (Kids S-NFT COG$) holdings, the associated Beneficial Unit remains held on trust for the child until the Class kS Unit converts under the Declaration, but distributions may be paid in accordance with the nominated lawful account and proxy settings on the register.

10.5 Distributions to Sub-Trust C as D Class Beneficial Unit Holder must be paid into the designated Sub-Trust C trust bank account and are subject to the terms of the Sub-Trust C deed.

### 11. Register and Record Date

11.1 The Members Vault record maintained through the Approved Ledger Infrastructure is authoritative for Beneficial Unit administration only to the extent this Deed or the Declaration so provides, subject always to any superior legal record expressly identified by the Declaration and to lawful correction under this Deed and the Declaration.

11.2 The Trustee may maintain an off-chain administrative register for banking, tax, and contact purposes, but in any inconsistency the authoritative record determined under clause 11.1 prevails.

11.3 For each distribution cycle, the Trustee must set a record date for determining Beneficial Units entitled to that distribution. The record date must capture the D Class Beneficial Units held by Sub-Trust C.

11.4 The register must separately record: (a) Beneficial Units held by individual Members by Unit class; and (b) Beneficial Units held by Sub-Trust C as D Class Beneficial Unit Holder.

### 12. Distribution Election

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12.1 Each Beneficial Unit holder entitled to a Sub-Trust B distribution (other than Sub-Trust C as D Class Beneficial Unit Holder, whose distributions are governed by clause 10.5 and the Sub-Trust C deed) may elect to receive that distribution as:

– fiat currency (AUD) paid to the nominated bank account — the default where no election is made; or

– new ASX COG$ / Class A Units and, after completion of the required administrative verification and approval process through the Members Vault, the corresponding COG$ Token minted or recorded at the earliest practicable time thereafter, at the then-current Class A Unit consideration, subject to the Declaration, including Schedule 9, Part A, and the 1,000,000-Unit anti-capture cap (subject to Lr exclusion, as entrenched under Declaration clause 35(f)).

12.2 A Distribution Election must be made by the published deadline for the relevant distribution cycle. If no valid election is made, the default is payment in AUD.

12.3 A distribution made in AUD under this clause is a trust income distribution and is not a fiat redemption, resale, or cash-out of any COG$ Token or corresponding Unit under the Declaration. This clause operates subject to Declaration clause 22.0.2. It permits payment of trust income in AUD, but does not permit any secondary sale, redemption, listing, or fiat conversion of a Unit or corresponding COG$ Token.

12.4 Where a Beneficial Unit holder elects to receive new ASX COG$ / Class A Units and the corresponding COG$ Token record, the Trustee must ensure that lawful issue conditions and corresponding Token-recording conditions are satisfied in accordance with the Declaration, including Schedule 9, Part A, and that the required administrative verification and approval process is completed through the Members Vault before that election is fulfilled. Once those steps are complete, the corresponding COG$ Token must be minted or recorded at the earliest practicable time thereafter.

12.5 If a token election cannot lawfully be fulfilled, the distribution must instead be paid in AUD unless applicable law requires the amount to be retained pending resolution.

12.6 Distributions payable to Sub-Trust C as D Class Beneficial Unit Holder must be paid as AUD into the Sub-Trust C trust bank account. No Distribution Election applies to Sub-Trust C's entitlement.

## 13. Tax, Withholding, and Unclaimed Amounts

13.1 The Trustee must maintain such tax file number, withholding, and reporting records as are required by the Income Tax Assessment Act 1997 (Cth), the Taxation Administration Act 1953 (Cth), and other applicable laws in respect of Sub-Trust B distributions.

13.2 The Trustee may deduct or withhold only those amounts required by law and must account to the relevant authority for any amount so withheld.

13.3 Where a distribution cannot be completed because banking details, legal identity details, or compliance information are missing or defective, the amount remains held on trust for the relevant Beneficial Unit holder until rectified, subject to any applicable unclaimed money law.

13.4 The Trustee must provide each Beneficial Unit holder with an annual tax statement in respect of Sub-Trust B distributions received, sufficient to enable that holder to meet its income tax obligations.

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## PART 5 — TRUSTEE POWERS, LIMITS, AND ADMINISTRATION

### 14. Trustee Powers

14.1 Subject to this Deed and the Declaration, the Trustee has all powers reasonably necessary to administer Sub-Trust B as a fixed distribution trust, including power to:

- receive the Beneficiary Distribution Stream from Sub-Trust A;
- maintain trust bank accounts and distribution ledgers;
- calculate entitlements, make distributions, and issue statements;
- maintain registers, tax records, and compliance records;
- engage auditors, administrators, bankers, and service providers; and
- do all things necessary or incidental to the proper administration of Sub-Trust B.

14.2 The Trustee must exercise its powers in the best interests of all Beneficial Unit holders as a whole and impartially between classes of Beneficial Unit holders — including Sub-Trust C as D Class Beneficial Unit Holder — having regard to their respective entitlements.

14.3 The Trustee must not use Sub-Trust B as a general operating account, investment vehicle, or discretionary reserve.

14.4 Non-MIS statement. The CJVM Hybrid Trust is not a managed investment scheme within the meaning of section 9 of the Corporations Act. The Trustee must not represent to any third party, regulator, or court that the CJVM Hybrid Trust is or may be a managed investment scheme. The Members' position is that the CJVM Hybrid Trust is a community joint venture, not a managed investment scheme. The third limb of section 9 is not satisfied because the Members exercise day-to-day control over the operation of the trust through their proprietary cryptographic systems.

### 15. Administration Costs and Indemnity

15.1 Sub-Trust B is not intended to bear a discretionary management fee calculated as a percentage of assets. Administrative costs directly attributable to Sub-Trust B may be paid or reimbursed only to the extent expressly permitted by the Declaration, applicable law, a court order.

15.2 The Trustee has a right of indemnity out of the Trust Fund for liabilities and expenses properly incurred in administering Sub-Trust B, but only to the extent allowed by law and without derogating from the fixed, mandatory nature of the distribution obligation.

**15.3 No payment under this clause permits the Trustee to reduce, vary, or avoid the mandatory transfer and distribution mechanics entrenched in the Declaration.**

### 16. Audit, Statements, and Disclosure

16.1 The Trustee must keep full and accurate books, records, bank statements, distribution ledgers, tax records, and Beneficial Unit registers for Sub-Trust B, including a separate ledger for Beneficial Units held by Sub-Trust C as D Class Beneficial Unit Holder.

16.2 The Trustee must make Sub-Trust B records available for audit in conjunction with the audit of the CJVM Hybrid Trust.

16.3 The Trustee must publish or make available to Beneficial Unit holders the information required under the Declaration, including quarterly Unit Value disclosure and annual reporting of distribution activity.

16.4 Sub-Trust B distribution data — including per-unit distributions, record dates, payment dates, and the number of D Class Beneficial Units held by Sub-Trust C — must be disclosed in the annual report of the CJVM Hybrid Trust.

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## 17. General Provisions

17.1 Notices under this Deed shall be given by email or by publication on the Foundation's website. Notices take effect: (a) if by email, on the next business day after sending; and (b) if by website publication, two business days after publication.

17.2 A waiver by the Trustee of any right under this Deed does not constitute a waiver of any other right or a continuing waiver.

17.3 If any provision of this Deed is held invalid or unenforceable, it must be read down to the minimum extent necessary to make it valid. If it cannot be read down, it must be severed and the remaining provisions continue in full force.

17.4 This Deed may be executed by electronic signature or by electronic execution pages forming part of one electronically authenticated instrument. Each such execution page and its associated execution record forms part of the one original electronically executed Deed referred to in clause 1.5A. A printed copy of that electronically authenticated instrument is evidence only and not the original.

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## PART 6 — ENFORCEMENT, AMENDMENT, AND CONTINUITY

### 18. Enforcement

18.1 Any Beneficial Unit holder (including Sub-Trust C as D Class Beneficial Unit Holder) may enforce the mandatory distribution obligations of this Deed in the Supreme Court of South Australia.

18.2 Nothing in this Deed limits any right or remedy available under the Declaration, the Trustee Act 1936 (SA), the Corporations Act, or general trust law.

### 19. Amendment

19.1 This Deed may be amended only to the extent permitted by the Declaration and only in a manner consistent with all entrenched provisions of the Declaration.

19.1A Trustee amendment obligation. Where a valid Members Poll under the JVPA directs the Trustee to amend this Deed, the Trustee must execute the required amendment within 30 days of that direction, or such other period as the resolution specifies. The Trustee may not refuse to execute such amendment except where compliance would require the Trustee to breach an entrenched provision of the Declaration or applicable law. Written reasons must be provided to the Members within 5 business days if the Trustee declines to act.

19.2 No amendment may reduce or alter the mandatory 50% transfer to Sub-Trust B, the 60-day distribution obligation, the one-Beneficial-Unit-per-eligible-Unit entitlement structure, the D Class Beneficial Unit Holder status of Sub-Trust C, or the ring-fencing of the three sub-trusts unless the Declaration itself is lawfully amended to permit that change.

### 20. Successor Trustee and Continuity

20.1 This Deed follows the office of Trustee, not the identity of any particular trustee entity or person.

20.2 Any successor trustee lawfully appointed under the Declaration automatically assumes all rights, powers, duties, and obligations of the Trustee under this Deed upon appointment without further act or instrument, except for any transfer or vesting document required by law.

### 21. Winding Up

21.1 Sub-Trust B continues for so long as the CJVM Hybrid Trust continues.

21.2 Upon lawful dissolution of the CJVM Hybrid Trust under Declaration clause 41, the assets of Sub-Trust B remaining after payment of liabilities properly attributable to Sub-Trust B must be applied consistently with the Declaration. Sub-Trust C's entitlement as D Class Beneficial Unit Holder must be satisfied before any residual distribution to individual Beneficial Unit holders on winding up. No Sub-Trust A assets shall be distributed as cash to individual Beneficial Unit holders or for-profit entities (Declaration clause 35(p) — entrenched).

21.3 Nothing in this clause permits any private appropriation of trust property contrary to the Declaration.

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## SCHEDULE 1 — INITIAL TRUST PROPERTY AND SETTLEMENT

**The CJVM Hybrid Trust is constituted by the declaration and Caretaker Trustee, Thomas Boyd Cunliffe, that holds the Initial Trust Property on the trusts of the Declaration. Sub-Trust B does not receive a separate settled sum. Any property later credited to Sub-Trust B constitutes the Trust Fund of Sub-Trust B in accordance with this Deed.**

| Field | Detail |
|---|---|
| ASX listing | ASX:LGM (LEGACY MINERALS HOLDINGS LIMITED) |
| Number of shares | 1,545 shares |
| Account | CRVGS (IG brokerage account) |
| Book cost | $239.48 AUD |
| Evidence | IG account statement for account CRVGS |
| Held for | COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust |

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## EXECUTION

This instrument is executed as a deed by Thomas Boyd Cunliffe as Declarant and as Caretaker Trustee of Sub-Trust B by electronic means in accordance with the Electronic Transactions Act 1999 (Cth) and, where applicable, section 14G of the Electronic Transactions Act 2000 (NSW). No wet ink signature or paper counterpart is required. If witnessing is required by applicable law, the witness may attest electronically, including by separate audio-visual connection, and that attestation forms part of this Deed's own Deed Execution Record. If this Deed is executed on the same calendar date as the Declaration by a separate audio-visual connection held shortly following execution of the Declaration, it remains separately executed but is deemed for instrument-suite dating and effect to take effect on that same date.

### DECLARANT

| **Signed by** | **Thomas Boyd Cunliffe** |
|---|---|
| Electronic signature | **Settlement evidence note: IG account CRVGS — 1,545 ASX:LGM shares — book cost $239.48 AUD. Sub-Trust B arises as a ring-fenced division of the CJVM Hybrid Trust; no separate settled sum is required. The initial parcel is appropriated now, and must be transferred into the trust's required compliant holding structure as soon as operationally practicable.** |
| Name | Thomas Boyd Cunliffe |
| Capacity | as Declarant |
| Execution date | For execution-record custody and authenticated-copy protocol, see clause 1.5A. |
| Electronic witness attestation | If witnessing is required by applicable law: electronic attestation of witness, including by separate audio-visual connection where permitted by law. |

### TRUSTEE — SUB-TRUST B

| **Signed by** | **Thomas Boyd Cunliffe** |
|---|---|
| Electronic signature | **Settlement evidence note: IG account CRVGS — 1,545 ASX:LGM shares — book cost $239.48 AUD. Sub-Trust B arises as a ring-fenced division of the CJVM Hybrid Trust; no separate settled sum is required. The initial parcel is appropriated now, and must be transferred into the trust's required compliant holding structure as soon as operationally practicable.** |
| Name | Thomas Boyd Cunliffe |
| Capacity | as Caretaker Trustee of Sub-Trust B of the COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust |
| Execution date | For execution-record custody and authenticated-copy protocol, see clause 1.5A. |
| Electronic witness attestation | If witnessing is required by applicable law: electronic attestation of witness, including by separate audio-visual connection where permitted by law. |

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